

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF SUFFOLK

DIANE C. DESOUSA AND THOMAS E. DESOUSA,

Plaintiff,

-against-

RICHARD A. CALVAGNO II AND PATRICK J.
KARCHER,

Defendants.

Index No. 600371/2021

**AFFIRMATION IN
SUPPORT**

JOHN N. CUOMO, an attorney duly admitted to practice law before the Courts of the State of New York, affirms the following subject to the penalties of perjury.

1. I am the attorney for the Plaintiffs in this matter and as such, I am fully familiar with the facts and circumstances of the action at bar.
2. This affirmation in support of the within application to compel Defendant Richard A. Calvagno II ("Calvagno") to respond to Plaintiffs' Combined Demands, or in the alternative to strike Defendant Calvagno's answer, defenses and counterclaims, and for such other and further relief as this Court may deem just and proper.
3. This action was commenced on January 8, 2021 with the filing of a Summons and Complaint. Issued was joined with the filing of answers by Calvagno (on January 26, 2021¹) and by Defendant Patrick J. Karcher on March 5, 2021. (Pleadings are annexed collectively hereto as **Exhibit A**)
4. On or about Plaintiffs served upon the Defendants "Combined Demands" which are annexed hereto as **Exhibit B**. Both Defendants responded; Calvagno's response,

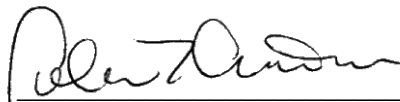
¹ Defendant Calvagno provided two answers, one dated and filed on January 26, 2021 and a second with counterclaims dated January 25, 2021 and filed on January 27, 2021. Plaintiffs treated the second (filed January 27) answer as an amended answer and filed its response to this pleading.

dated May 18, 2021, is attached as **Exhibit C**. The response contains three photographs, but no video.

5. On May 24, 2021 Calvagno's counsel served what was identified as a "Cease and Desist" letter. In that letter counsel wrote that Defendant Calvagno had been "recording events" as they occurred (*see*, attached **Exhibit D**). Defendant Calvagno had not provided any recordings in his May 18, 2021 response.
6. The undersigned responded on May 28, 2021 (*see*, attached **Exhibit E**) indicating that why counsel wrote the events were being recorded, no such recordings were provided. We noted the Defendant had an obligation to maintain and surrender those images. To date, Defendant Calvagno has not provided any such material.
7. Delays in obtaining discovery has limited Plaintiffs' ability to build its case and defenses to the counterclaims of Defendant Calvagno. C.P.L.R. § 3101 (a) provides that "[t]here shall be full disclosure of all matter material and necessary in the prosecution or defense of an action, regardless of the burden of proof". CPLR 3101(i) provides that "[t]here shall be full disclosure of any films, photographs, video tapes or audio tapes" showing the activities of a party to litigation.
8. The material for which Defendant Calvagno has admitted to creating and storing is on point to each of the issues in the matter at bar and will help Plaintiffs frame their case and defend against the allegation put forward by this Defendant.
9. The letter of the undersigned dated May 28, 2021 and waiting six weeks for production represents a good faith effort to resolve this matter without the intervention of the Court.
10. There has been no prior application for the relief sought herein.

WHEREFORE Plaintiffs respectfully request that the relief sought herein be granted together with such other, further and different relief this Court deems to be just and proper.

Dated: Commack, New York
July 15, 2021



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